

SENATE No. 1531

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting harmful food dyes in competitive school foods.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>3/24/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>3/24/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/25/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>7/31/2025</i>

SENATE No. 1531

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 1531) of Ryan C. Fattman for legislation to prohibit the use of harmful food dyes in competitive school foods. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting harmful food dyes in competitive school foods.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 223 of chapter 111 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after subsection (g) the following new subsections:-

3 “(h) Beginning December 31, 2028, from the midnight before to 30 minutes after the end
4 of the school day, at each public-school competitive foods and non-sweetened carbonated water
5 may not be sold or provided on school grounds if they contain any of the following substances:

6 A. Blue 1 (CAS 3844-45-9).

7 B. Blue 2 (CAS 860-22-0).

8 C. Green 3 (CAS 2353-45-9).

9 D. Red 3 (CAS 16423-68-0).

10 E. Red 40 (CAS 25956-17-6).

11 F. Yellow 5 (CAS 1934-21-0).

12 G. Yellow 6 (CAS 2783-94-0).

13 (i) A school may permit the sale or provision of competitive foods that do not comply
14 with subsection (h) of this section if the sale of such items takes place:

15 A. Off and away from the premises of the school; or

16 B. On school premises at least one-half hour after the end of the school day; or

17 C. At booster sales, concession stands and other school-sponsored or school-related
18 fundraisers and events.”